

## **TENTATIVE RULINGS for LAW and MOTION**

### **March 26, 2026**

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at [www.yolo.courts.ca.gov](http://www.yolo.courts.ca.gov). If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

|                                                       |                |
|-------------------------------------------------------|----------------|
| Telephone number for the clerk in Department Eleven   | (530) 406-6843 |
| Telephone number for the clerk in Department Fourteen | (530) 406-6800 |

## TENTATIVE RULING

**Case:** Ghavamzadeh v. Lock  
Case No. CV2025-2216

**Hearing Date:** March 26, 2026      **Department Fourteen**      **9:00 a.m.**

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Defendants Norcal Gold, Inc. and Tracy Harris' (collectively, "defendants") demurrer to plaintiff Vesta Ghavamzadeh, as Trustee of The Olivia & Elliot Trust's ("plaintiff") complaint as to the first cause of action for breach of contract is **SUSTAINED WITH LEAVE TO AMEND**.

(Code Civ. Proc., § 430.10, subd. (e).) Defendants are not parties to the agreement attached to plaintiff's complaint. (See *Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; Complaint, ¶ 29, Exhibit A.) Although defendants may have entered into separate agreements with plaintiff, such agreements are not pled by their terms (verbatim or attached) or their legal effect. (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489; Complaint, ¶¶ 12-34.)

Defendants' demurrer to plaintiff's complaint as to the second cause of action for intentional misrepresentation is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to establish that the complaint does not state facts sufficient for this cause of action. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974; *Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 208; Complaint, ¶¶ 7, 17-19, 25-26, & 35-43.)

Defendants' demurrer to plaintiff's complaint as to the third cause of action for negligent misrepresentation is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to establish that the complaint does not state facts sufficient for this cause of action. (*SI 59 LLC v. Variel Warner Ventures, LLC* (2018) 29 Cal.App.5th 146, 154; *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645; *Mary M., supra*, 54 Cal.3d at p. 208; Complaint, ¶¶ 7, 15-18, & 44-50.)

Defendants' demurrer to plaintiff's complaint as to the fourth cause of action for breach of fiduciary duty is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to establish that the complaint does not state facts sufficient for this cause of action. (*Knox v. Dean* (2012) 205 Cal.App.4th 417, 432; *Mary M., supra*, 54 Cal.3d at p. 208; Complaint, ¶¶ 7 & 52-58.)

Defendants' demurrer to plaintiff's complaint as to the fifth cause of action for negligence is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to establish that the complaint does not state facts sufficient for this cause of action. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917; *Mary M., supra*, 54 Cal.3d at p. 208; Complaint, ¶¶ 7 & 59-66.)

Defendants' demurrer to plaintiff's complaint as to the sixth cause of action for concealment is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to establish that the complaint does not state facts sufficient for this cause of action. (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248; *Mary M., supra*, 54 Cal.3d at p. 208; *RSB Vineyards, LLC v. Orsi* (2017) 15 Cal.App.5th 1089, 1101; Complaint, ¶¶ 7 & 67-77.)

Defendants' demurrer to plaintiff's complaint on the ground of uncertainty is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) Defendants have not shown the complaint is "so

incomprehensible” that defendants cannot reasonably respond. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616; see generally Complaint.)

Defendants’ demurrer to plaintiff’s complaint on the ground that it is time-barred is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Based on the complaint and matters judicially noticeable, defendants have not established that the complaint is time-barred. (Civ. Code, § 2079.4; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; see generally Complaint.)

Plaintiff may amend the complaint by no later than **April 6, 2026**. (Cal. Rules of Court, rule 3.1320(g).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

## TENTATIVE RULING

**Case:** **Guzman v. Vargas**  
**Case No. CV2025-1492**

**Hearing Date:** **March 26, 2026** **Department Fourteen** **9:00 a.m.**

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Defendant Burgers and Brew Station 1, LLC's unopposed motion for a protective order is **GRANTED IN PART**. (Code Civ. Proc., §§ 2019.030, 2025.420, 2030.090, 2031.060.) Defendant has shown good cause for this Court to issue a protected order. (Code Civ. Proc., §§ 2030.090, 2031.060; see also *Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1250 & 1252; Halop decl., ¶¶ 2-7, Exhibits A-D.) However, the protective order is limited to the names, phone numbers, home addresses, e-mail addresses, and job titles of the third-party employees or former employees identified in response to plaintiff Carolina Viera Guzman's request for production of documents, no. 43, and special interrogatories, nos. 3 and 16.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

**TENTATIVE RULING**

**Case:** **Iden v. FCA US, LLC**  
**Case No. CV2024-2815**

**Hearing Date:** **March 26, 2026** **Department Eleven** **9:00 a.m.**

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Based on defendants FCA US, LLC and Hoblit Chrysler Jeep Dodge's request to continue, filed March 19, 2026, defendants' motion to compel deposition is **CONTINUED** to **April 21, 2026**, at 9:00 a.m. in Department Eleven.

## TENTATIVE RULING

**Case:** **MCG Land and Farms, LLC v. Steele, et al.**  
**Case No. CV2025-2469**

**Hearing Date:** **March 26, 2026** **Department Eleven** **9:00 a.m.**

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Defendants Christopher Steele and Capay Valley Ranches, Inc.’s request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendants’ demurrer to the third cause of action in the first amended complaint for negligence on the ground that it fails to state facts sufficient to constitute a cause of action is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that this cause of action is barred by the economic loss rule because the alleged special relationship between the parties cannot exist absent the Development Agreement. (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922; *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 19-21, 37; FAC, attachments PLD-C-001(1) and PLD-PI-001(2), Exhibit A.) The Court further finds that plaintiff MCG Land and Farms, LLC, fails to show how an amendment can cure this defect. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636 [“[t]he burden of proving such reasonable possibility is squarely on the plaintiff”]; *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081 [“plaintiff has the burden of proving that an amendment would cure the defect”].)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

**TENTATIVE RULING**

**Case:**                    **The People ex rel. Yolo-Solano Air Quality Management  
District v. Defty  
Case No. CV2024-1095**

**Hearing Date:**       **March 26, 2026**                    **Department Eleven**                    **9:00 a.m.**

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On the Court's own motion, plaintiff the People of the State of California ex rel. Yolo-Solano Air Quality Management District's motion for issuance of order to show cause, request for sanctions and attorneys fees is **CONTINUED** to **April 21, 2026**, at 9:00 a.m. in Department Eleven.

**TENTATIVE RULING**

**Case:**                      **Vazquez v. G & B Fulfillment, LLC**  
                                 **Case No. CV2025-1035**

**Hearing Date:**        **March 26, 2026**                      **Department Eleven**                      **9:00 a.m.**

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Parties are **DIRECTED TO APPEAR** for a hearing on plaintiffs Steven Vazquez and Christopher Horn's unopposed motion for preliminary approval of class action settlement. (Cal. Rules of Court, rule 3.769(c), (d).)